

Respond to:

Kalman Hartig (in propria persona)
"Without Prejudice"
% 900 9th Ave East; Lot 100
Palmetto, Florida [34221]
Non-Domestic

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT, (a private
corporation for profit)
IN AND FOR MANATEE COUNTY (a private corporation for profit)

COLONIAL MANOR MHC HOLDINGS, LLC,	)	
	)	Case Number: 2024-CC-2691 AX
Plaintiff,	)	
	)	NOTICE AND DEMAND TO
		RECONSIDER THE RULING
		AGAINST DEFENDANT'S MOTION
		FOR TRIAL BY JURY & OTHER
		ISSUES
vs	)	
	)	
KALMAN HARTIG	)	
	)	
Defendant.	)	

COMES NOW Kalman of the family Hartig, a live breathing man on the land and soil,
am here by special divine appearance, to settle this matter, to call for a constitutional
court of record, to ask for a RECONSIDERATION BY THIS COURT of the improper
ruling on the MOTION FOR TRIAL BY JURY filed on February 9, 2025 based on the
true facts placed on the record by my documents.

1. The Defendant herein moves this Court to reconsider the MOTION FOR TRIAL
BY JURY (ORDER DENYING MOTION) based on the following facts:

A) The **5th Amendment** of THE U.S CONSTITUTION reads: .

“No person shall be... deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.”

This **guarantees due process** before life, liberty, or property can be taken.

B) The **14th amendment** (Section 1) of the U. S. Constitution reads:

“...nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.” This extends the **same protection** against state governments.

C) The **6th amendment** regarding criminal prosecutions reads:

“In all criminal prosecutions, the accused shall enjoy the right to a **speedy and public trial, by an impartial jury...”**

The same principle applies to civil cases.

D) The **7th amendment** in Civil cases reads: “In Suits at common law, where the value in controversy shall exceed twenty dollars, **the right of trial by jury shall be preserved...**”

MEMORANDUM OF LAW

The Due Process Clauses of the **Fifth and Fourteenth Amendments** to the United States Constitution, and **Article I, Section 9** of the **Florida Constitution**, prohibit any deprivation of life, liberty, or property without due process of law.

Due process requires **(1) notice, (2) an opportunity to be heard, and (3) adjudication by a fair and impartial tribunal.**

Federal Authority

In *Fuentes v. Shevin*, 407 U.S. 67 (1972), the United States Supreme Court held that **a person's right to enjoy and possess property cannot be taken by the State without prior notice and a meaningful opportunity to be heard.**

The Court explained that even temporary or partial deprivation of property without due process violates the Fourteenth Amendment.

Similarly, in *Goldberg v. Kelly*, 397 U.S. 254 (1970), the Court emphasized that **procedural due process is a constitutional guarantee whenever government action threatens an individual's property interests.**

The Court stated that "the fundamental requisite of due process of law is the opportunity to be heard at a meaningful time and in a meaningful manner."

Florida Authority

Florida law provides parallel protections.

Article I, Section 9 of the Florida Constitution mirrors the federal guarantee that *no person shall be deprived of life, liberty, or property without due process of law.*

Florida courts have consistently held that **a property owner must be afforded due process before being deprived of possession or ownership rights.**

In *Trawick v. State*, 473 So. 2d 1235 (Fla. 1985), the Florida Supreme Court reiterated that due process under the Florida Constitution requires both **notice and a meaningful opportunity to be heard.**

Likewise, *Department of Law Enforcement v. Real Property*, 588 So. 2d 957 (Fla. 1991), reaffirmed that **no person may be permanently or temporarily deprived of property without due process, including a judicial hearing.**

Right to Trial by Jury

The **Seventh Amendment** to the U.S. Constitution and **Article I, Section 22** of the Florida Constitution preserve the right to trial by jury in civil disputes involving property rights.

This right “**shall remain inviolate**” and extends to cases in which factual issues must be resolved **before a deprivation of property** may lawfully occur. (See, *Floyd v. Bentley*, 496 So. 2d 862 (Fla. 2d DCA 1986).)

Application to This Case

The Defendant, as the lawful owner of the mobile home, possesses a constitutionally protected **property interest** distinct from the land beneath it.

The execution of the WRIT OF POSSESSION resulted in seizure, removal, or loss **of the Defendant’s home without a hearing or trial by jury constituted a direct violation of the Due Process Clauses of the United States and Florida Constitutions.**

Furthermore, the court failed to uphold liberal construction of procedures for self litigants in its ruling and COURT ORDER on March 14, 2025. The U.S. Supreme Court and federal courts consistently hold that **self litigants are entitled to more lenient treatment** in how their pleadings are interpreted and handled.

Case Law

- **Haines v. Kerner**, 404 U.S. 519 (1972)

The Supreme Court held that a pro se litigant’s pleadings are to be “**held to less stringent standards than formal pleadings drafted by lawyers.**”

Courts must therefore read such filings liberally to ensure justice is done.

- **Erickson v. Pardus**, 551 U.S. 89 (2007)

Reaffirmed *Haines*, stating that pro se filings must be “liberally construed” and that “a document filed pro se is to be liberally construed and a pro se complaint, however inartfully pleaded, must be held to less stringent standards.”

- **Tannenbaum v. United States**, 148 F.3d 1262, 1263 (11th Cir. 1998) (which includes Florida in its circuit)

“Pro se pleadings are held to a less stringent standard than pleadings drafted by attorneys and will, therefore, be liberally construed.”

Consequently, Courts must interpret self litigants’ pleadings with **flexibility**, making sure the party’s **substantive rights are not lost** merely because they lack legal training. The same leniency and flexibility is also required by Florida law. Florida courts follow the same rule, emphasizing that **justice should not be denied due to technicalities when a person is unrepresented**.

Florida Case Law

- *Fla. Dept. of Corrections v. Goad*, 754 So. 2d 95, 97 (Fla. 1st DCA 2000):

“Pro se pleadings are to be liberally construed, and technical requirements are not to defeat the intent of such filings where possible.”

- *Baker v. State*, 878 So. 2d 1236, 1250 (Fla. 2004):

The Florida Supreme Court acknowledged the duty to construe pro se filings liberally and in the interest of fairness.

- *Eaton v. Eaton*, 293 So. 3d 567 (Fla. 2d DCA 2020):

Recognized that courts should afford some leniency to self-represented parties, though not to the extent of abandoning neutrality or the rules of procedure.

In addition to the above, the procedural “lateness in filing” the MOTION FOR TRIAL BY JURY was also impacted by Defendant asking his counsel to step aside. Self litigants are not expected to know all rules of Civil Procedure and the “lateness” in this case

needs to be excused and needs to be **subservient to the Rights of the Defendant** for due process and a trial by jury as guaranteed by both Constitutions.

Consequently, Rules and rulings need to be given serious reconsideration in view of the Constitutional rights of the individual, especially when it pertains to life liberty and property. The ruling and COURT ORDER issued on March 14, 2025 clearly violates Defendant's right of due process. Furthermore, the Defendant would also like to remind your Honor of the OATH OF OFFICE she took on August 13, 2019 and August 19, of 2020.

In addition to the above, Defendant would like to remind the court that his basic and fundamental rights supersede any procedural limitations and are guaranteed by the constitution. The government and courts are here to serve the Defendant not the other way around!

In view of Defendant's right not having been upheld properly and dutifully to satisfy constitutional rights and requirements, **any rulings made on or after March 14, 2025 are to be considered null and void!**

REQUEST FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Honorable Court:

a. **Vacate or set aside** any previous ORDERS AND RULINGS such as the one on March 14, 2025 purporting to deprive Defendant of possession or ownership of the mobile home until a full and fair hearing has been held. They are: MOTION FOR TRIAL BY JURY and ORDER DENYING SUMMARY JUDGMENT.

b. **Vacate or set aside** ORDER FOR JUDGMENT OF POSSESSION issued on June 9, 2025 and subsequent WRIT OF POSSESSION (issued shortly thereafter)

- c. **Grant a trial by jury** on disputed factual issues concerning ownership and possession; and
- d. GRANT a new hearing regarding MOTION FOR SUMMARY JUDGMENT
- e. STAY ANY FURTHER HEARINGS like the one scheduled for November 18,2025 until this urgent issue has been resolved.
- f. GRANT such other and further relief as this Court deems just and proper, such as compensation for being deprived and not being able to enjoy the use of his property in question during the last few months. Also GRANT new hearings regarding the above issues if necessary.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was furnished by E-Portal filing and Email to:
WLLIAM PRICE, III, PA, at Email: pleadings@wcpricelaw.com Counsel of Plaintiff and
Kalman Hartig, sonigenesis@gmail.com
on this 11th day of November, 2025.

Kalman Hartig, (in propria persona) “Without prejudice”